

25STCV12935 25STCV12935

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Case Number: 25STCV12935 Hearing Date: August 4, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

JOSHUA EISENBERG,

Plaintiff,

vs.

CITY OF LOS ANGELES, et al.,

Defendants.

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CASE NO.: 25STCV12935

[TENTATIVE] ORDER SUSTAINING DEMURRER

Dept. 506

8:30 a.m.

August 4, 2026

On October 21, 2025, Plaintiff

Joshua Eisenberg filed a second amended complaint ("SAC") against Defendant City of Los Angeles and others.

On

November 17, 2025, Defendant filed a demurrer.

REQUEST

FOR JUDICIAL NOTICE

Defendant's

requests for judicial notice of Los Angeles Municipal Code sections and orders and judgments in another action are granted.

Plaintiff's

objections are overruled. (Opposition at

pp. 3-4.) "[E]ven though a factual finding

in a prior judicial decision may not establish the truth of that fact for purposes

of judicial notice, the finding itself may be a proper subject of judicial notice

if it has a res judicata or collateral estoppel effect in a subsequent action." (Kilroy v. State of California (2004) 119

Cal.App.4th 140, 148; see also Evid. Code, § 452, subd. (d).)

DEMURRER

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demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) “Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice.” (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)

A. Background Facts

Plaintiff

was the original sole Social Equity Individual Applicant (“SEIA”) associated with PNPLXPRESS, Inc.’s Social Equity Applicant’s retail cannabis dispensary application record. (SAC ¶ 7.) In May 2024, the SEIA license was deemed abandoned. (SAC ¶ 8.) In July 2024, Plaintiff learned that the Department of Cannabis Control had reversed the abandonment and transferred the license and subsequent refiling rights to Guy Logan. (SAC ¶ 10.) Plaintiff alleges that the license transfer violated Los Angeles Municipal Code 104.20, breached contractual obligation, breached fiduciary duties, and constituted conversion of Plaintiff’s property. (SAC ¶¶ 33-37, 40-41, 44-46, 49-51, 54-56, 59-60, 63.)

B. The SAC is Barred by Collateral Estoppel.

Res

judicata is “an umbrella term, encompassing both the primary aspect of claim preclusion and the secondary aspect of issue preclusion.”

(Cal Sierra Development, Inc. v. George Reed, Inc. (2017) 14 Cal.App.5th 663, 671.) “Issue preclusion prohibits the

relitigation of issues argued and decided in a previous case, even if the second suit raises different causes of action. [Citation.] Under issue preclusion, the prior judgment conclusively resolves an issue actually litigated and determined in the first action. [Citation.]

There is a limit to the reach of issue preclusion, however. In accordance with due process, it can be asserted only against a party to the first lawsuit, or one in privity with a party. [Citation.]’ [Citation.]” (Id. at pp. 671-672.)

As

Defendant explains, "Collateral estoppel / issue preclusion applies here because the Superior Court of California has already found that Mr. Eisenberg agreed to sell his cannabis license to Defendant Guy Logan and his affiliates, and the court enforced that settlement agreement in a written judgment dated November 12, 2024. (RJN, Exh. B.) Mr. Eisenberg is therefore estopped from re-litigating the issue of who rightfully owns the cannabis license at issue." (Demurrer at pp. 12-13.)

The

demurrer is sustained on this ground.

C. Defendant is Immunized by the Government Code.

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public entity is not liable for an injury arising out of an act or omission by the public entity or its employees, unless provided by statute. (Gov. Code, § 815, subd. (a).) Plaintiff does not allege any statute under which Defendant could be liable.

Instead,

Defendant notes that it is statutorily immune from injuries "caused by the issuance, denial, suspension or revocation of, or by the failure or refusal to issue, deny, suspend or revoke, any permit, license, certificate, approval, order, or similar authorization where the public entity or an employee of the public entity is authorized by enactment to determine whether or not such authorization should be issued, denied, suspended or revoked." (Demurrer at p. 15; Gov. Code, § 818.4.)

The

demurrer is sustained on this ground.

CONCLUSION

For

these and other reasons argued in the motion, the demurrer is SUSTAINED without leave to amend.

Defendant

City of Los Angeles is DISMISSED WITH PREJUDICE. (See Metabyte, Inc. v. Technicolor S.A.

(2023) 94 Cal.App.5th 265, 275 (“a dismissal without prejudice is not available if the demurrer is sustained without leave to amend”].)

Moving party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 4th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court